

The Water (Prevention And Control Of Pollution) Cess Rules, 1978

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Union of India - Act

The Water (Prevention And Control Of Pollution) Cess Rules, 1978

UNION OF INDIA

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The Water (Prevention And Control Of Pollution) Cess Rules, 1978

Rule THE-WATER-PREVENTION-AND-CONTROL-OF-POLLUTION-CESS-RULES-1978 of 1978

Published on 24 July 1978

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The Water (Prevention And Control Of Pollution) Cess Rules, 1978

Published vide Notification G.S.R. 378(E), dated 24.7.1978, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 24.7.1978.

1071.

In exercise of the powers conferred by section 17 of the Water (Prevention and Control of Pollution) Cess Act, 1977 (36 of 1977), the Central Government hereby make the following rules, namely:-

1.

Short title and commencement .-(a) These rules may be called The Water (Prevention and Control of Pollution) Cess Rules, 1978.

(b)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Water (Prevention and Control of Pollution) Cess Act, 1977 (36 of 1977);

(b)

"assessing authority" means-

(i)

[in relation to a Union territory, the Member-Secretary of the Central Pollution Control Board and in those Union territories where Pollution Control Committees have been constituted by the Administrator/Lt. Governor, a member nominated by the Administrator/Lt. Governor, a member nominated by the chairman thereof; and]

(ii)

in relation to a State, the Member-Secretary of the State Board;

(c)

"consumer" means a person or local authority by whom the cess under sub-section (1) of section 3 is payable under sub-section (2) of that section;

(d)

"form" means a form annexed to these rules;

(e)

"section" means a section of the Act;

(f)

"State Government", in relation to a Union territory means the Administrator thereof appointed under article 239 of the Constitution.

3.

Standards of meters and places where they are to be affixed .-(1) For the purposes of measuring and recording the quantity of water consumed, every consumer shall affix water meters, venturi meters or orifice meters with integrators and recorders in conformity with the standards laid down by the Indian Standards Institution and where no standards have been laid down by that institution in conformity with such standards as may be specified by the Board.

(2)

Wherever the meters referred to in sub-section (1) are not available, the consumer shall install Vee notches or rectangular notches, with indicators and recorders or pressure gauges and pumping installations, after obtaining the permission of the assessing authority.

(3)

Every consumer shall provide a separate meter for assessing the quantity of water used for each of the four purposes mentioned in column (1) of Schedule II to the Act.

(4)

The meters shall be affixed at the entrance of the water supply connections with the premises of the consumer or at any other place to be approved by the assessing authority, so that such meters are easily accessible for inspection and maintenance and for other purposes of the Act:

Provided that the place where the meter is affixed shall, in no case, be at a point before which water has been tapped by the consumer for utilisation for any purpose whatsoever.

4.

Furnishing of returns .- [(1)] Every consumer shall furnish on or before the 5th of every calendar month, to the assessing authority, a return in Form I showing the quantity of water consumed in the previous month.

(2)

[If the consumer fails to submit the return as specified in sub-rule (1) the assessing authority or the officer authorised in this regard shall issue a notice in Form I-A.]

[Inserted by G.S.R. 311(E), dated 28.2.1992 (w.e.f. 5.3.1992).]

5.

Manner of payment of the cess to the Central Government and the time within which it shall be paid .-(1) Every State Government shall remit to the Central Government, the amount of cess collected from the consumer before the 10th day of the calendar month succeeding the month in which it is collected from the consumer.

(2)

The amount of cess referred to in sub-rule (1) shall be remitted to the Central Government in the form of a bank draft drawn in favour of the [Pay and Accounts Officer, Department of Environment], New Delhi, in whose books of accounts, the receipts would be adjusted finally.

(3)

On receiving the bank draft, the Ministry of Works and Housing shall remit the same through a challan into the Reserve Bank of India, New Delhi, for the purpose of crediting under relevant Major Head.

6.

Rebate .-Where a consumer installs any plant for the treatment of sewage or trade effluent, such consumer shall be entitled to the rebate under section 7 on and from the expiry of fifteen days from the date on which such plant is successfully commissioned and so long as it functions successfully:

[Provided that a consumer shall not be entitled to the rebate if he-

(a)

consumes water in excess of the maximum quantity specified in column (3) of the First Schedule appended to these rules for the category of industries specified in the corresponding entry in column (2) relating to the specified industry given in column (1) thereto, or

(b)

fails to comply with any of the provisions of section 25 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974

), or any of the standards laid down by the Central Government, under the Environment (Protection) Act, 1986 (29 of 1986

);.]

[6-A. Collection by States/Union territories

.-The Cess Collecting Authority of the State/Union territory shall furnish a statement with the Central Government before the 10th day of the calendar month of January, April, July and October showing assessment of cess of specified industries, its collection and arrears.]

7.

Powers to be exercised by the Officer or the Authority of the State Government under section 9.-The officer or authority of the State Government specially empowered under section 9 shall have in addition to the powers referred to in clauses (a) and (b) of that section, the power to-

(i)

inspect the manufacturing process or plant of the consumer;

(ii)

inspect the water supply systems and installations in the plant of the consumer;

(iii)

inspect water treatment system and installations in the plant of the consumer;

(iv)

inspect the drainage system and installations, including storm water disposal in the plant of the consumer;

(v)

call for and inspect records relating to the use and consumption of materials and water, and those relating to production, in the plant of the consumer;

(vi)

call for and inspect the records relating to power consumption in the plant of the consumer; and

(vii)

call for any other information or records relating to the supply, consumption and treatment of water in the plant of the consumer.

8.

Authority to impose penalty under section 11.-The authority to impose penalty under section 11 shall be the assessing authority.

9.

Appeal .-(1) Any consumer aggrieved by an order of assessment made under section 6 or by an order imposing penalty

made under section 11 may appeal in Form II annexed hereto, to a Committee (hereinafter referred to as the appellate committee) consisting of-

(a)

where the assessing authority is the Member-Secretary of the Central Board, the Chairman of that Board, who shall be the Chairman of the Committee, and two members of that Board, to be nominated by the Chairman thereof [and in those Union territories where Pollution Control Committees have been constituted by the Administrator/Lt. Governor, the Chairman of such committee and two members to be nominated by the Chairman thereof];

(b)

where the assessing authority is the Member-Secretary of the State Board, the Chairman of that Board, who shall be the Chairman of the Committee, and two members of that Board, to be nominated by the Chairman thereof.

(2)

Such appeal shall state the facts of the case and the grounds relied upon by the appellant for preferring the appeal and shall be accompanied by a copy of the order of assessment made under section 6 or a copy of the order imposing penalty made under section 11, as the case may be.

(3)

Such appeal shall be preferred within a period of thirty days from the date of communication of the order of assessment or the order imposing penalty on the appellant:

Provided that if the Chairman of the appellate committee is satisfied that there was good and sufficient reason for the delay in preferring the appeal, he may, for reasons to be recorded in writing, allow the appeal, to be preferred after the expiry of the aforesaid period of thirty days and before the expiry of forty-five days from the date of communication of the order of assessment, or the order imposing penalty, on the appellant.

(4)

Every appeal shall be accompanied by a fees of rupees fifty.

FORM I

(See rule 4)

RETURN REGARDING WATER CONSUMED DURING
THE MONTH OF

Name and Address of the Consumer

Purpose for which water consumed

Reading at the beginning of the first day of the calendar month under report

Reading at the end of the last day of calendar month under report

Quantity of water consumed in Kilo litres

If the meter was out of order the monthly average consumption of water for the previous 3 months of working period

Quantity of water qualifying for rebate according to the assessee

Remarks

(*)

1

2

3

4

5

6

7

8

1.

Industrial cooling spraying in mine pits or boilers feed

(i)from Municipal water supply mains

(ii)from well/tubewell

(iii)from canal

(iv)from river

(v)from any other source

2.

Domestic purpose

(i)from Municipal water supply mains

(ii)from well/tubewell

(iii)from canal

(iv)from river

(v)from any other source

3.

Processing whereby water gets polluted and the pollutants are easily bio-degradable

(i)from Municipal water supply mains

(ii)from well/tubewell

(iii)from canal

(iv)from river

(v)from any other source

4.

Processing whereby water gets polluted and the pollutants are not easily bio-degradable and are toxic.

(i)from Municipal water supply mains

(ii)from well/tubewell

(iii)from canal

(iv)from river

(v)from any other source

(*)

for claiming rebate under Col.. 7 the assessee shall indicate in this column

the analytical and other reports annexed to this return in support of this

claim

Signature of

the consumer

Name

.

Address

.

ANNEXURE TO FORM I

Report

of Analysis to treated effluent showing performance of the treatment plant -For

the month of

Sample

collected on

.

..

..

Sample tested

on

.

...

..

By the

laboratories

..

..

S.No.

Polluting parameters as mentioned in the conditions imposed under consent granted under section 25/26 of the Water (Prevention and Control of Pollution) Act, 1974

Maximum permissible limits or ranges allowed as per consent conditions

Concentration of range of parameters as per report

Dates on which

There was break down or failure of the plant

On which under performance was noticed

1

2

3

4

5

6

Signature

.

Date

..

Name

Address

.

FORM IA

[See rule 4(2)]

[Inserted by G.S.R. 311(E), dated 28.2.1992.]

Name of the Board :

No

Dated

Notice

under Section 5(2) of the Water (Prevention and Control of Pollution) Cess Act, 1977.

(36 of 1977).

To,

Name

and Address of the Consumer :

Assessment

period

Whereas

you were required to furnish a return as provided under sub-section (1) of Section 5 of the Water (Prevention and Control of Pollution) Cess Act, 1977 (

36.

of 1977) read with sub-rule (1) of Rule 4 of the Water (Prevention and Control of Pollution) Cess Rules, 1978, by the 5th of

And

whereas you have filed to furnish the returns by the said date :

Now, therefore, you are hereby called upon to furnish the return within 7 days from the date of receipt of this Notice.

In

case no return is received within the said period of 7 days, action will be taken for making assessment as per sub-section (1A) of section 6 of the aforesaid Act, ex-parte besides initiating any other legal action as per law against you.

Issuing Authority

Place:

Date :

Name

Address

.

FORM II

(See rule 9)

(FORM OF MEMORANDUM OF APPEAL)

Before

..(**)

Memorandum

of appeal under section 13 of the Water (Prevention and Control of Pollution)
Cess Act, 1977.

Appeal No

..of 20

.

.

.

.

.

(here

furnish complete postal address)

Appellant

Vs.

.

.

.

(here

mentioned the name and designation of assessing authority)

..Respondent

The

appellant named above, begs to prefer this memorandum of appeal against the
order dated

passed by

. on the following facts and grounds :

FACTS

(here briefly mention the facts of the
case)

GROUND

(here mention the grounds on which the
appeal is made)

1.

2.

3.

4.

PRAYER

In

the light of what is stated above, the appellant respectfully prays that
he/she/it may be exempted from the payment of Cess.

He/she/it

may be allowed a rebate of 70 per cent as provided for in the Act and the amount of Cess reduced to Rs

The

amount of Cess has not been correctly assessed and that it may be reduced to Rs

..

The

penalty imposed on him/her/it has been wrongfully imposed and should be set aside.

The

penalty imposed on him/her/it is excessive and should be suitably reduced on the basis of the facts as stated.

2. The amount of Rs

.(Rupees

.) as fees for the appeal has been

paid to

..vide Receipt No

..dated

.

Place

.

Date

...

Signature of the Appellant

.

Name

.

Address

..

[SCHEDULE]

[Added by G.S.R. 311(E), dated 28.2.1992 (w.e.f. 5.3.1992).]

(See rule 6)

Sl. No.

Name of Industry

Category

Maximum quantity of Water

1

2

3

4

1.

Ferrous Metallurgical

Integrated Iron & Steel

20 Cubic metres per tonne of finished steel

2.

Non-ferrous Metallurgical

(a)Copper Smelters

(b)Zinc Smelters

100 Cubic metres as per tonne of copper produced.

50 Cubic metres per tonne of Zinc metal produced

3.

Chemical

(a) Caustic Soda

(i) Mercury cell process

(ii) Membrane Cell process

5 Cubic metres per tonne of caustic soda produced (excluding cooling water) and 5 cubic metres per tonne of caustic soda produced for cooling water.

5 Cubic metres per tonne of caustic soda including cooling water

4.

Textile

(a) Manmade fibre

(i) Nylon & Polyester

(ii) Viscose rayon

170 Cubic metre per tonne fibre produced.

200 Cubic metre per tonne of fibre produced

5.

Paper

(a) Small Pulp and Paper

(i) Agro-residue based

(ii) Waste Paper based

(b) Large Pulp and Paper

(i) Pulp and Paper

(ii) Rayon grade Paper

200 Cubic metre tonne of paper

75 Cubic metre tonne of paper

250 Cubic metre per tonne of paper

200 Cubic metre per tonne of paper

6.

Fertilizer

(a) Straight nitrogenous fertilizer

(b) Straight phosphatic fertilizer (single super phosphate and Triple super phosphate) excluding manufacture of any acid

(c

) Complex Fertilizer

15 Cubic metre per tonne of urea or equivalent produced

2 cubic meter per tonne of single Super Phosphate/Triple Super Phosphate

15 cubic metre per tonne in case the primary product is nitrogenous fertilizer and 2 cubic meter per tonne in case the primary product is a phosphatic fertilizer

7.

Processing of animal or vegetable products industry including processing of milk, meat, hides and skins all agricultural products and their waste

(a) Tanneries

30 cubic metre per tonne of raw hides

(b) Natural rubber

6 cubic metre per tonne of rubber

(c) Starch, glucose and related products

10 cubic metre per tonne of maize crushed

(c) Starch, glucose and related products

10 cubic metre per tonne of maize crushed

(d) Dairy

4 cubic meter per kilo litre of milk processed

(e) Jute

1.5 cubic metre per tonne of jute produced

(f) Sugar

2 cubic metre per tonne of cane crushed

(g) Maltry

8.5 cubic metre per tonne of grain processed

(h) Brewery

1 cubic meter per kilo of beer produced

(i) Distillery

15 cubic metre per kilo litre of alcohol produced.

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Translation